

Chief Justice's Court

Case :- WRIT - C No. - 11106 of 2021

Petitioner :- Neetu Singh

Respondent :- Executive Engineer Vidyut Nagariya Vitaran Khand, Bamrauli And 3 Others

Counsel for Petitioner :- Adwait Singh

Counsel for Respondent :- Narendra Kumar Tiwari, Krishna Agarawal

Hon'ble Sanjay Yadav, Chief Justice

Hon'ble Prakash Padia, J.

Matter taken up through video conferencing.

Heard Shri Adwait Singh, learned counsel for the petitioner.

Shri Krishna Agarwal, learned counsel appears for the Respondent no.3 and Shri Narendra Kumar Tiwari, learned counsel appears for the Respondents no. 1, 2 and 4.

The petitioner by way of present petition seeks following relief:-

"I. Issue a writ, order or direction in the nature of mandamus commanding direct the respondent no.1- Executive Engineer, Vidyut Nagariya Vitaran Khand, Bamrauli, District Prayagraj to treat the Electric Connection No. 6819396176 of petitioner as covered under LMV-9-(B) (i)(i) [Metered-Individual Residential construction], within stipulated period, as may be fixed by this Hon'ble Court."

It is borne out from record that in respect of grievance raised in present petition, the petitioner has also invoked Clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005 vide representation dated 10.02.2021 (page 18 of the compilation).

Clause 6.5 of the Code of 2005 contemplates:

"6.5 Disputed Bills and Arrears :

(a) If there is an error of a non-pecuniary nature (incorrect name, address, etc.) in the bill the complaint shall be registered with the concerned competent authority. Corrections, if any required, shall be made in the next bill. The consumer shall be required to make the payment before due date.

(b) If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect, the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge.

(c) If a consumer has cleared his dues as specified in the bill, and still some part of it is shown as an arrear in the next bill, the consumer may lodge a complaint with the Licensee. However, if this arrear is again reflected in the next billing cycle also, the consumer shall be entitled for compensation as prescribed in Annexure 7.1.

(d) In case licensee raises a bill for supply of energy to permanently disconnected connection e.g. six months after temporary disconnection, the Consumer may intimate the MD of the licensee under proper receipt and if no action is still taken within next 15 days, shall be entitled for compensation as prescribed in Annexure 7.1 by licensee. The licensee shall submit a quarterly statement to the Commission giving zone wise details of such bills along with compensation given on this account during the quarter."

Since the matter is already in seisin with the Executive Engineer, UPPCL, instead of dwelling on merit of the matter, we dispose of the petition with a direction to the Executive Engineer, Vidyut Nagariya Vitaran Khand, Bamrauli, Prayagraj-Respondent no. 1 to decide the

dispute raised by the petitioner vide objection dated 10.02.2021 expeditiously; however, not later than thirty days from the date of communication of this order.

Petition is **disposed of** finally in above terms.

Order Date :- 17.6.2021

Kirti

(Prakash Padia, J) (Sanjay Yadav, Chief Justice)